



**Comments of the
Nashville Songwriters Association International
on the Request for Information on the Development of an Artificial
Intelligence (“AI”) Action Plan**

Delivered via portal at <https://www.federalregister.gov/documents/2025/02/06/2025-02305/request-for-information-on-the-development-of-an-artificial-intelligence-ai-action-plan#open-comment>

We appreciate the opportunity to provide information as the administration develops an Artificial Intelligence action plan. We feel this is a vital step toward creating guardrails around this new technology in the interest of protection of American creators and their works. We applaud the Trump Administration for prioritizing this topic and seeking the input of the affected community.

In early 2023 the Nashville Songwriters Association International (NSAI) formed a songwriter task force to evaluate the impact of generative artificial intelligence models, assess opportunities regarding the profession of songwriting and develop a set of general principles regarding generative AI.

Those principles included:

1. Human authors and their copyrights must be valued and protected.
2. The use of a creator’s work as training material for an AI system is not fair use.
3. The evolution of generative AI is rapid and ongoing. Therefore, any laws or regulations must be regularly reviewed and be adaptable as generative AI technology advances.
4. Flooding the market with unregulated AI music has the potential to strip the United States of its leading role in music creation and other forms of intellectual property and can devalue one of America’s greatest exports.

5. There are potential creative opportunities associated with properly licensed and tracked generative AI.

Those overarching principles ultimately led the organization to focus its pursuit of legislative and marketplace solutions that follow an alliterative **Four P's – PERMISSION, PAYMENT, PENALITIES and PROOF.**

PERMISSION –The use of a creator's work in any fashion, including learning by generative AI, requires licensing, and thus, permission. Since generative AI software has likely ingested the sum of all music ever created that is digitally available via the internet, this would require methodology for retroactive application.

PAYMENT – Ingesting copyrighted works based wholly or in part without permission and commensurate licensing is categorical infringement. Copyright owners and creators must be compensated for the use of their material in training and the subsequent musical works AI creates. Furthermore, AI training material and use licensing should be handled in the free market much like licenses for music synchronization are currently obtained and payment negotiated. Various AI models are substantively different from one another and so are output uses, so there will be no appropriate one size that fits all. Each license request will need to be reviewed and negotiated by the copyright owners based on how the specific AI model works and how the training material and outputs will ultimately be used. These nuances can only be discerned in a free market negotiated licensing model.

PROOF – Generative AI models must be required to keep transparent and complete records of AI training material in real time. Additionally, a complete digital footprint of all usage must be kept including ingested material, human input and the output generated, referenced source material in relation to output, etc. In the event that a songwriter believes their copyright has been infringed and they wish to bring suit, this information would be vital in proving access. Additionally, it would allow good-actor users to credit original authors appropriately where necessary.

PENALTIES – Copyright owners must have the ability to seek penalties from bad actors who use their copyrighted material for training without licensing as well as damages when their work is infringed by the output of a generative AI model. Like Tennessee's ELVIS Act and recently introduced federal legislation, copyright owners should be able to seek remedies in local civil courts including injunctive measures and damages for violation of the previous 3 P's – permission, payment and proof. By contrast, requiring that such recourse be sought in U.S. District Court is cost-prohibitive for the average songwriter.

THE NASHVILLE SONGWRITERS ASSOCIATION INTERNATIONAL

The Nashville Songwriters Association International (NSAI) is the world's largest not-for-profit trade association for songwriters. NSAI was founded in 1967 by 42 songwriters including Eddie Miller, Marijohn Wilkin, Kris Kristofferson, Felice and Boudleaux Bryant and Liz and Casey Anderson as an advocacy organization for songwriters and composers. NSAI has around 5,000 members and nearly 100 chapters in the United States and abroad.

The Nashville Songwriters Association International is dedicated to protecting the rights of songwriters in all genres of music and addressing needs unique to the songwriting profession. The association, governed by a Board of Directors composed entirely of professional songwriters, features a number of programs and services designed to provide education and career opportunities for songwriters at every level.

NSAI owns The Bluebird Cafe, a legendary songwriter performance venue in Nashville, Tennessee. The Music Mill, at 1710 Roy Acuff Place in Nashville, where the careers of Alabama, Reba McEntire, Toby Keith, Shania Twain and Billy Ray Cyrus were launched, serves as headquarters for the Nashville Songwriters Association International.